

Subject: Eligibility Requirements

Item: Determining Income Eligibility

PURPOSE:

To provide guidance and outline the requirements when making an income eligibility determination and the proper documentation requirements necessary for participation.

POLICY:

Local agency (LA) staff must determine income eligibility of applicants at initial certification and recertification. Applicants must meet specific income criteria to be eligible for WIC program benefits.

PROCEDURES:

I. Household Size

- A. LA staff must establish the applicant's household size. An applicant's "family" or "household size" can include a group of related or nonrelated individuals who are living together as one economic unit.
- B. LA staff must ask questions to prompt the applicant to disclose information helpful to determining household size.
- C. Determining household size for:
 1. Pregnant
 - a. A pregnant applicant's unborn embryo(s) or fetus(es) may be counted as part of the household size if the applicant does not meet income eligibility requirements at the current household size. The addition of unborn embryo(s) or fetus(es), for purposes of calculating income eligibility, should be offered to the pregnant applicant as an option if the applicant is over income.
 - b. Do not add a pregnant applicant's unborn embryo(s) or fetus(es) to their household size automatically or without their consent.
 2. Infant, Child and Postpartum
 - a. Count each applicant as one person as part of the household size of the family with whom they live the majority of the time. Refer to WPPM 290-00.
 3. Homeless Individuals
 - a. Count homeless applicant(s) living in a residential institution/homeless facility as one person. The household size of the applicant living in a shared housing facility or unit of related persons does not include other residents of the shelter. Income of the individual resident must be considered separate from the income of the other residents and the revenues of the institution/facility. Refer to WPPM 210-15.

Subject: Eligibility Requirements**Item: Determining Income Eligibility**

4. Foster Child

- a. Count as one person as long as they remain the legal responsibility of a foster agency. Payments made by the foster agency for the care of that child is the income of that foster child.

II. Determining Income Eligibility**A. Adjunctive Eligibility**

1. LA staff must ensure that adjunctive eligibility is assessed first prior to performing a standard income determination.
2. LA staff must ask applicants who are adjunctively eligible to self-report their income and enter this information into WIC WISE. However, if an applicant is not able to readily provide this information or declines to self-report their income, it must not interfere with their certification nor result in collecting additional income documentation. Refer to WPPM 210-02.

B. Not Adjunctively Eligible

1. LA staff must use income documentation from all sources to determine that the current income for applicants that are not adjunctively eligible falls below the federal threshold to qualify for WIC benefits. Refer to WPPM 980-1060.
2. Current income: All gross income before taxes, from all sources, received by the household in the 28-31 days prior to the date of application. Applicants are not required to provide a whole month of paystubs to determine current income if the applicant has regular and consistent earnings.
3. Zero income applicants
 - a. Applicants reporting zero income must be prompted to describe their living circumstances and how they obtain basic necessities such as food, shelter, clothing, and medical care.
4. Unemployed applicants
 - a. Income from unemployed or laid off applicants is calculated based on income the household will have available in the next 30 days.
 - b. Unemployment benefits must be reported as income in WIC WISE.
5. Self-employed applicants
 - a. LA staff must use the adjusted net income (Adjusted Gross income) figure from the most recently completed Internal Revenue Service tax return (Form 1040).
 - b. LA staff may use the net annual income for farm and non-farm self-employed applicants.

Subject: Eligibility Requirements

Item: Determining Income Eligibility

6. Student applicants

- a. LA staff must use income documentation from all sources to determine the current income including student loans and grants not listed in the federal exclusions. Refer to WPPM 210-04.

C. Income Exclusions

1. LA staff must exclude certain sources of income from the income eligibility calculation. Refer to WPPM 210-04.

D. Proof of Income at Initial Certification and Recertification

1. The most recent pay stub must not be dated more than 30 days prior to the documentation submission date or the certification appointment.
2. LA staff must attempt to collect all sources of income documentation prior to a certification or recertification appointment.
3. Income documentation or proof of income may be provided in physical form, displayed in-person via electronic format (e.g., emails, cell phones, tablets, pictures, etc.), or submitted remotely. For acceptable means of obtaining documents remotely, refer to WPPM 220-30.
4. In WIC WISE, LA staff must select one of the options listed below for documenting proof or lack of proof of income:
 - Alimony
 - Bank Account Statement (Use of Savings)
 - Cash Payment (Signed Self Declaration Required)
 - Child Support
 - Disability
 - Disaster Victim (Signed Self Declaration Required)
 - Dividends/Interest
 - Foster Care Stipend Letter
 - Government Retirement/ Private Pensions/ Annuities
 - Handwritten document (scan in)
 - Homeless (Signed Self Declaration Required)
 - Income Tax Form/W-2
 - Letter of Support Indicating Cash Income
 - Letter or Written Statement from an Employer
 - Lump Sum Payment
 - MEDS Interface/Verified Adjunctive Eligibility
 - Migrant Farmworker (Signed Self Declaration Required)
 - Military Leave and Earning Statement (LES)
 - Net Royalties
 - No Proof Provided (Signed Self Declaration Required)
 - Notice of Action Form

CERTIFICATION

WPPM #210-03

Subject: Eligibility Requirements

Item: Determining Income Eligibility

- | | |
|---|---|
| • Pay Stub (current 28-31 days) | • Universal Basic Income/Income Supplement |
| • Rental Income | • Worker's Compensation |
| • Social Security Income | • Zero Income (no Signed Self Declaration Required) |
| • Student Financial Grants/Scholarships | |
| • Unemployment Benefits Check/Letter | |

E. When LA staff are provided any handwritten source for proof of income other than the ones listed above, it must be scanned into WIC WISE.

F. LA staff are permitted to request additional proof of income if they doubt the validity of any of the sources provided.

1. LAs must contact CDPH/WIC at WICabuse@cdph.ca.gov if fraud is suspected.

G. Exceptions to the income guidelines requirements

1. Applicants that meet any of the following criteria are not required to provide proof of income:
 - a. Disaster victim.
 - b. Homeless.
 - c. Paid in cash.
 - d. Migrant farmworker.
2. Obtain an e-signature on the *CDPH 4130 Self Declaration Statement*. Provide a completed copy to the participant. The signed Self Declaration Statement is valid for the entire certification period.
3. Migrant farmworker: LA staff must not determine the income eligibility of migrant workers more than once annually, even if applicant is from out-of-state. Income eligibility of migrant farmworkers expires 12 months from the date of their last income determination.
 - a. Instream migrant farmworkers with expired VOC documents, may still be eligible for WIC benefits if the income was assessed within the last 12 months. Income eligibility must only be determined once every 12 months for migrant farmworker families.

Subject: Eligibility Requirements**Item: Determining Income Eligibility**

H. Lacking Proof of Income at Initial Certification and Recertification

1. If an applicant fails to bring acceptable proof of income but meets all other eligibility criteria, and is not adjunctively eligible, LA staff must:
 - a. Certify or recertify the applicant for 30 days.
 - b. Select “No Proof Provided (Signed Self Declaration Required)” option from the WIC WISE dropdown menu.
 - c. Obtain an e-signature on the *Self Declaration Statement CDPH 4130* Form. Provide a completed copy to the applicant.
 - d. Clearly inform the applicant: (1) to bring the necessary proof needed for program eligibility within 30 days, (2) the consequences of failing to do so, which can lead to them being found ineligible for WIC and being terminated from the program.
 - e. Schedule a new appointment within 30 days.
 - f. Issue only one month of food benefits.
2. If the applicant provides an approved proof of income within 30 days and is found to be income-eligible, LA staff must document proof in WIC WISE. The short-certification must be removed and the certification period begins with the month food benefits were initially issued.
3. If the applicant returns within 30 days with the required documentation but is determined to be over-income, LA staff must determine the applicant ineligible and terminate them from the program. While the applicant must be given the opportunity to appeal this action, this is an initial determination and does not require a 15-day advance written notice of action. The determination of ineligibility and termination are effective immediately. LA staff must:
 - a. Complete termination in WIC WISE.
 - b. Not issue further food benefits to the applicant.
 - c. Issue *CDPH 4134 Notice of Action at Initial Certification and Recertification* to the applicant.

I. Exceeding 30 Days with no Proof of Income

1. If the applicant exceeds 30 days and fails to provide an approved proof of income, the applicant must be determined ineligible and terminated from the program. While the applicant must be given the opportunity to appeal this action, this is an initial determination and does not require a 15-day advance written notice of action. The determination of ineligibility and termination are effective immediately. LA staff must:
 - a. Not issue further food benefits to the applicant.

CERTIFICATION

WPPM #210-03

Subject: Eligibility Requirements

Item: Determining Income Eligibility

- b. Issue *CDPH 4134 Notice of Action at Certification and Recertification* to the applicant.
- c. Under no circumstances can a second, subsequent 30-day temporary certification period be used if the applicant fails to provide the required documentation.

AUTHORITY:

[7 CFR § 246.7\(d\)](#)

[WIC Policy Memorandum #2013-3](#)

[WIC Policy Memorandum #2023-6](#)

USDA All States Memorandum 99-54

CROSS REFERENCE:

WPPM 210-02 Adjunctive Eligibility

WPPM 210-04 Income Exclusions

WPPM 210-15 Homeless Individuals

WPPM 280-30 Notices of Action

WPPM 290-00 Family Representative

WPPM 520-10 Fair Hearing Requests and Procedures

WPPM 980-1060 WIC Income Guidelines